

Federal Maritime Commission

Informal Docket No. 1954 (F)

Taylors Resources Inc (USA) d/b/a/ Bridgewater Landing, Inc (USA)

v.

Mitsui OSK. Lines LTD. d/b/a MOL America

**COMPLAINANTS ADVISE ON FINDING OF ADDITIONAL EVIDENCE PERTINENT
FOR CONSIDERATION ON 1954 (F) /REQUEST FOR PERMISSION TO SUBMITT
EVIDENCE TO THE FEDERAL MARITIME COURT AND DEFENDANT FOR
CONSIDERATION**

To: The Honorable Judge Clay G. Guthridge
Administrative Law Judge Federal Maritime Commission

Dear Sir,

The extension granted by this court has allowed the Plaintiff Bridgewater Landing Inc (BLI) to obtain additional information for this courts consideration and asks at this time Plaintiff be allowed to present this information and documentation brief.

In particular, BLI hired a third party Wan Jin Da (Tian Jin) Commerce Trade Co. LTD to investigate BLI assertion MOLU0108835 (MOL-026) was returned to Hong Kong for disposal. Wan Jin Da has provided via China's official government web site www.gov.cn/fifg/2012-10/22/content_2248774.htm regulations on the re-export of cargo from one Chinese Port to Another. (Please see exhibits WJD-001,002,003 and WJD-004 in Chinese and the translated version in exhibits WJD-005, 006, 007,008, 009, 010, 011, 012 and WJD-013 signed by the translator Tianjin Tianwai Translation Limited Company.

BLI directs the courts attention to Article 11 on Chapter 2 of Exhibit WJD-007. "Foreign enterprises "Such as MOL" shall not engage in waterway transportation business, nor shall they disguise the operation of water transport business in such a manner as to hire Chinese Nationality ships or spaces" This article confirms what Mr. Tony Lucas advised in MOL 040. MOL would have had no right to operate cargo from one Chinese port to another Chinese Port. This law is the same for foreign carriers operating in the US waters. BLI point there is no legal way MOL could ever have exported this cargo direct from Xingang to Hong Kong in this container. Further BLI directs to courts attention to the supposed B/L provided by MOL, MOLU11026857343, (MOL-107). If MOL had indeed exported this container direct to Hong Kong MOL would have broken Chinese Law.

Second, BLI asks the court to allow Plaintiff BLI to be allowed to present to this court. A sworn statement received from BLI investigator Wan Jin Da (Tian Jin) Commerce Trade Co. Who after consulting with customs officials in China, TJCIQ Government Inspection Service and Hong Kong Customs officials the following points. Please see exhibit (WJD-015) "Regarding B/L MOLU26005510205, Wan Jin inquired with Tianjin Xingang Customs and Tianjin Xingang CIQ, there is no proof of inspection of unqualified goods. And this cargo was auctioned off by customs in Xingang. We direct this court to examine MOL-026 provided by MOL. This has been verified by Tianjin Xingang Customs, it is an authentic Tianjin Xingang Customs Import and Export inspection Center Service Hall. If this container had been opened in Xingang as BLI contents how could it have the same seal number as MOL contents it had when it arrived in Hong Kong. (MOL-107)

Further (WJD-015) "Tianjin Xingang Customs in their system can not find any records of container being returned to origin in association with this bill of lading MOLU26005510205. Article 117 of the Chinese Customs Law, provision for the direct return of goods (with original container and original seal intact) within 60 days after the goods are disembarked, in this case there is no declaration in the bill of lading, shipping merchant can apply for the return of container. If more than 60 days without declarations, Customs has authority to auction off immediately. This point may be confirmed by Tianjin Xingang Customs"

Further (WJD-015) Wan Jin Da inquired with both Tianjin Xingang Customs and Tianjin Xingang CIQ (TJCIQ) Inspection on B/L MOLU11026857343. Both official agencies advise there is no records of export on Tianjin Xingang Customs and (TJCIQ) There are no records of export on Tianjin Xingang Customs computer system of this B/L. There is no export declaration of goods, TJCIQ also does not have any export information on this B/L.

Wan Jin Da also sent an inquiry via email to Hong Kong MOL and telephone inquiry to MOL Hong Kong. According to assistant Manager Rayson Chang's reply, he can't locate the bill of lading in the system. BLI contents MOL never generated this bill of lading. It was a simple return of Empty equipment to Hong Kong.

BLI also submits to this court for consideration WJD-016 from our investigator Wan Jin Da. Who again issued another inquiry to Tianjin Xingang Customs, who gave our investigator the following reply's.

WJD-016. This bill of lading MOLU11026857343 is forged according to the Peoples Republic of China State Council Decree No. 625 Article 11 of Chapter 2.(WJD-007) Foreign enterprises consists of other economic organization and not allowed disguising in the manner of renting Chinese ships or spaces in China, including Hong Kong and Macau.

China Customs also pointed out, B/L MOLU11026857343 if indeed this container was shipped from Tianjin to Hong Kong means (MOL) is in serious violation of China's Maritime Law. Tianjin Xingang Customs requested BLI to provided evidence on this point.

Tianjin Xingang Customs states the suspicion of violation of China's Maritime law to assist the Shipper MOL smuggling of goods to Hong Kong, they will pursue the legal liability of merchant shipping (MOL) Please see exhibit WJD-016. All Foreign enterprises must respect the rule of law in respective jurisdiction.

In accordance with Article 35 of Chapter 5 of the State Council Decree No. 625 (WJD-012) of the Peoples Republic of China, the legal liability is imposed by a fine of more than \$10,000 to less than \$1 Million.

At the same time the merchant shipping (MOL) and shipper of bill of lading MOLU11026857343 will be submitted to the Tianjin Customs anti-smuggling departments handles the smuggling of goods. WJD-016

The next point BLI asks this court to consider is what happened to the Cargo in Xingang. It appears to have been auctioned off in Xingang and was never placed on a vessel for transport to Hong Kong. BLI contents that MOL has mislead this court and asks for your consider on these points in the courts decision.

As BLI finally point, BLI again asks the Federal Maritime Commission to rule in its favor based on this outlandish behavior by MOL of providing forged documents and misleading this court by providing documentation of expense of disposal and shipment that were NOT incurred by MOL. When this container was clearly disposed of in Xingang and not Hong Kong (Most likely at public auction). Based on official Chinese government policy . BLI has contented from the beginning that MOL was at best negligent in the handling of this shipment of plastic scrap and at worst criminal in creating expenses that never incurred.

Finally, BLI asks this court to find in their favor based on the evidence BLI has provided and reject MOL defense and admonish MOL for evidence provided.

Signed

Dated June 23, 2017

**Sworn to and subscribed
before me this
23 day of June 2017**


**KERRI J. KEITH
NOTARY PUBLIC OF NEW JERSEY
Comm. # 2413530
My Commission Expires 10/14/2021**


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